

STATE OF NEW YORK

3084--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. HYNDMAN -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to allowing licensed estheticians and licensed cosmetologists to practice microneedling

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 6 of section 400 of the general business law,
2 as added by chapter 509 of the laws of 1992, is amended and three new
3 subdivisions 6-a, 7-a and 12 are added to read as follows:

4 6. The practice of "esthetics" means providing for a fee, or any
5 consideration or exchange, whether direct or indirect, services to
6 enhance the appearance of the face, neck, arms, legs, and shoulders of a
7 human being by the use of compounds or procedures including makeup,
8 eyelashes, depilatories, tonics, lotions, waxes, microneedling, sanding
9 and tweezing, whether performed by manual, mechanical, chemical or elec-
10 trical means and instruments but shall not include the practice of elec-
11 trology.

12 6-a. "Esthetician" means a person licensed to practice esthetics.

13 7-a. "Cosmetologist" means a person licensed to practice cosmetology.

14 12. "Microneedling" means the use of FDA-approved needles no longer
15 than three tenths of a millimeter in length to create controlled micro-
16 injuries in the skin to improve its texture and appearance.

17 § 2. The general business law is amended by adding a new section 404-d
18 to read as follows:

19 § 404-d. Microneedling forty-hour course. 1. All licensed estheticians
20 and licensed cosmetologists shall in order to practice microneedling
21 complete a forty-hour microneedling approved course offered by the
22 department of state. This course shall be offered by a New York state-
23 licensed appearance enhancement school or other entity approved by the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 bureau of proprietary school supervision. Upon completion of such
2 course, licensed estheticians and licensed cosmetologists shall receive
3 a certificate of completion demonstrating theoretical knowledge and
4 practical proficiency in microneedling.

5 2. The forty-hour microneedling course curriculum shall include, but
6 not be limited to:

7 (a) anatomy and physiology of the skin.

8 (b) safety and infection control practices, including universal
9 precautions.

10 (c) proper handling, sanitizing, disinfecting, and disposing of mate-
11 rials that come into contact with blood or bodily fluids to ensure the
12 safety of both practitioners and clients.

13 (d) client assessment and identification of contraindications.

14 3. All licensed estheticians and licensed cosmetologists enrolling in
15 the forty-hour microneedling course shall provide proof of completion
16 and passing of occupational safety and health administration bloodborne
17 pathogen training certification.

18 § 3. This act shall take effect immediately.